"HAS THIS COURT USED THAT BEFORE?" ICC USE OF OUTSIDE AUTHORITIES

For the judge's question: *"Counsel, you cited an ICTY / ICJ / ICRC / national case. Has the ICC itself used such authorities?"* Learn the general answer first, then **one example per category**.

1. The general answer (works for every category)

Article 21 sets what the ICC applies:

- **21(1)(a):** the Statute, the Elements of Crimes and the Rules.
- **21(1)(b):** applicable treaties and the principles and rules of international law, *"including the established principles of the international law of armed conflict"*.
- **21(1)(c):** general principles of law derived from **national laws** of legal systems of the world.
- **21(2):** the Court *may* apply its **own** previous decisions. Decisions of other courts are **not binding**.

So outside decisions are **persuasive, not binding**. The ICC uses them to identify the rules in Article 21(1)(b) and (c).

> **Say:** "Your Excellency, those decisions do not bind this Court. Article 21(2) refers only to the Court's own decisions. But this Court regularly treats them as persuasive, to identify the principles and rules of international law under Article 21(1)(b). For example, in *[name one case from the table]*, this Court relied on *[the authority]*."

2. ICTY and ICTR decisions

ICC decision	What the ICC used it for	Status
Lubanga, Confirmation of Charges, PTC I, 29 Jan 2007 (ICC-01/04-01/06-803)	Adopted the ICTY *Tadić* Appeal "overall control" test to classify the conflict.	Confident; check para
Bemba, Confirmation of Charges, PTC II, 15 June 2009 (ICC-01/05-01/08-424)	Relied on ICTY *Blaškić* (Trial, 2000) for the "should have known" standard in command responsibility.	Verified
Lubanga, Trial Judgment, 14 Mar 2012, para 541; Katanga, Trial Judgment, 7 Mar 2014, para 1177	Took the definition of an international armed conflict from *Tadić* (Jurisdiction, 1995) para 70.	Confident; check para
Katanga, Trial Judgment, para 1176; Ntaganda, Trial Judgment, 8 July 2019, paras 731–733	Used the *Kunarac* (Appeal, 2002) para 58 nexus test.	Confident; check para

Your scripts cite Kordić, Tadić, Kunarac, Blaškić, Galić, Gotovina, Semanza and Kamuhanda.

3. Dörmann (Elements of War Crimes, 2003; and the Article 8 chapter in Triffterer and Ambos)

ICC decision	What the ICC used it for	Status
Abu Garda, Confirmation of Charges, PTC I, 8 Feb 2010 (ICC-02/05-02/09-243-Red), fn 93	Cited Dörmann, *Elements of War Crimes under the Rome Statute* (CUP 2003), on the law for attacks against peacekeepers.	Verified
Katanga and Ngudjolo, Confirmation of Charges, PTC I, 30 Sept 2008 (ICC-01/04-01/07-717)	Cited Dörmann on the war-crime elements (open the footnotes and search "Dörmann").	Check before citing

Extra point if asked: Dörmann's book records the **drafting history** of the Elements of Crimes. It shows what the States that wrote the Elements meant. That is why ICC Chambers use it.

4. ICRC Commentaries (Pictet 1952; AP Commentary 1987; GC I Commentary 2016)

ICC decision	What the ICC used it for	Status
Bemba, Confirmation of Charges, 15 June 2009, paras 222–223	Defining an international armed conflict, drawing on the ICRC (Pictet) Commentary to Common Article 2.	Check before citing
Ntaganda, Trial Chamber VI, Second Decision on Counts 6 and 9, 4 Jan 2017 (ICC-01/04-02/06-1707); Appeals Chamber, 15 June 2017 (ICC-01/04-02/06-1962)	Whether war crimes can be committed against members of one's own forces, reading the Geneva Conventions with the ICRC Commentaries.	Check before citing

Extra point if asked: the ICRC is the guardian of the Geneva Conventions. Its Commentaries are the standard guide to reading them, and Article 21(1)(b) points to those treaties.

5. ICJ decisions

ICC decision	What the ICC used it for	Status
Lubanga, Confirmation of Charges, PTC I, 29 Jan 2007, paras 212–220	Relied on the ICJ's *Armed Activities* (DRC v Uganda, 2005) to find that Uganda occupied Ituri.	Verified
Al Bashir, Appeals Chamber, Jordan Referral, 6 May 2019 (ICC-02/05-01/09-397)	Examined the ICJ's *Arrest Warrant* (DRC v Belgium, 2002) on Head-of-State immunity.	Confident; check para
Bangladesh/Myanmar, PTC I, Decision on Jurisdiction, 6 Sept 2018 (ICC-RoC46(3)-01/18-37)	Relied on the ICJ's *Reparation for Injuries* (1949) on the Court's international legal personality.	Confident; check para

Your scripts and memorials cite Nicaragua, Armed Activities and Whaling.

6. National and domestic cases (including US cases and the Nuremberg Military Tribunals)

ICC decision	What the ICC used it for	Status
Article 21(1)(c) itself	The Statute expressly allows "general principles of law derived… from national laws of legal systems of the world". This is your strongest answer here.	Verified
Lubanga, Confirmation of Charges, 29 Jan 2007 (co-perpetration section)	Built "control over the crime" from national criminal law theory (German doctrine). Doctrine, not a case.	Confident; check para
Bemba, Confirmation of Charges, 15 June 2009 (command responsibility section)	Discussed post-war precedents on a commander's knowledge (Nuremberg-era cases, e.g. *Hostages*, *High Command*). Search the footnotes for "List" and "Leeb".	Check before citing
Ongwen, Trial Judgment, 4 Feb 2021 (duress section)	Discussed duress with reference to *Erdemović* (ICTY) and national approaches.	Check before citing

Your scripts cite the Hostages case and the Medical Trial (US Military Tribunals), Milch, HCJ 769/02 (Israel), and the English, Canadian, Indian and US consent cases.

7. Eritrea–Ethiopia Claims Commission (Hirgigo)

No ICC decision found that cites it. Do not claim the ICC has used it.

> **Say:** "Not to our knowledge, Your Excellency. We rely on it as persuasive authority on Article 52(2) of Additional Protocol I, which the Commission held to be customary international law. Under Article 21(1)(b), this Court applies the established principles of the international law of armed conflict."

8. What the colours mean

Verified: confirmed from the decision or a reliable source during this research. **Confident; check para:** well known, but open the decision and confirm the paragraph. **Check before citing:** likely, but not confirmed. Open the decision and search the footnotes before you rely on it.

Tip: memorise one green example per category: *Bemba* (ICTY *Blaškić*), *Abu Garda* (Dörmann), *Lubanga* Confirmation (ICJ *Armed Activities*), and Article 21(1)(c) (national law).